and was preparing to lay them before the public, when a new turn was given to the matter by the late Act of Parliament.[1]

Since this has taken place, I suppress what I had written;[2] and will only give, at the end of my book, a list of the numbers delivered from Newgate for transportation in the course of three years. This will show, in a very alarming light, the danger there may be in future of crowding our prisons, so as to produce the most destructive consequences.

I cannot conclude this section, without attempting to obviate some objections that may occur to the improvements proposed in it. It may be said, that from the many conveniences suggested in the structure of prisons, and the removal of those hardships which rendered them so terrible, the dread of being confined in them will in great measure be taken off, and the lower classes of people will find them more comfortable places of residence than their own houses. But let it be considered in the first place, that although I have indeed recommended such attention in the construction and management as may free them from the diseases and hardships under which they have laboured, I have proposed nothing to give them an air of elegance or pleasantness. On the contrary, I have censured the plan of some modern gaols as too showy and splendid; and nothing abroad struck me more with regard to these buildings, than the perfect plainness and simplicity of their appearance. Then, with respect to the more humane treatment of the prisoners in the articles of food, lodging, and the like, I venture to assert, that if to it be joined such strict regulations in preventing all dissipation and riotous amusement, as I have inculcated, confinement in a prison, though it may cease to be destructive to health and morals, will not fail to be sufficiently irksome and disagreeable, especially to the idle and profligate.

The penitentiary houses directed by a late Act of Parliament, may, under proper management, be made to answer very useful

[1] Sixteenth of George III, cap. xliii. "An act to authorise, for a limited time, the punishment by hard labour of offenders who, for certain crimes, are or shall become liable to be transported to any of his Majesty's colonies and plantations." Mr. Eden has observed that "The numbers of persons for whom some mode of restraint and punishment in lieu of transportation must be provided, may be estimated at one thousand annually." See the preface to his draught of a bill, 1778. If the impolitic mode of transportation be again adopted, the cruelty should not be aggravated by confining convicts a long time before they are sent off.

[2] On the whole, I perfectly concur in opinion with a learned writer, who has asserted that "every effect of banishment, as practised in England, is often beneficial to the criminal, and always injurious to the community." *Principles of Penal Law*, p. 33.

purposes. Much, however, will depend upon their proper regulation. I do not pretend to be qualified for drawing up a perfect system of this difficult business; but in order to assist persons of superior abilities in their researches on this subject, I have added, at the end of the volume, a table of such general heads and particulars as seem to me most deserving of attention.